

**SUBSTITUTE FOR
SENATE BILL NO. 310**

A bill to amend 1973 PA 116, entitled
"An act to provide for the protection of children through the
licensing and regulation of child care organizations; to provide
for the establishment of standards of care for child care
organizations; to prescribe powers and duties of certain
departments of this state and adoption facilitators; to provide
penalties; and to repeal acts and parts of acts,"
(MCL 722.111 to 722.128) by adding section 6b.

THE PEOPLE OF THE STATE OF MICHIGAN ENACT:

1 **Sec. 6b. (1) The tri-share child care program is established**
2 **in the department of lifelong education, advancement, and potential**
3 **for the continuation of the child care facilitator program**
4 **originally initiated and funded as a pilot project under section**
5 **1047(31) of article 5 of 2020 PA 166, and as continued and modified**



1 in successive appropriations.

2 (2) The tri-share child care fund is created within the state
3 treasury.

4 (3) The state treasurer may receive money or other assets from
5 any source for deposit into the fund. The state treasurer shall
6 direct the investment of the fund. The state treasurer shall credit
7 to the fund interest and earnings from fund investments.

8 (4) Money in the fund at the close of the fiscal year must
9 remain in the fund and must not lapse to the general fund.

10 (5) The department of lifelong education, advancement, and
11 potential is the administrator of the fund for auditing purposes.

12 (6) The department of lifelong education, advancement, and
13 potential shall expend money from the fund, upon appropriation, to
14 do all of the following:

15 (a) Administer the tri-share care program established under
16 subsection (1).

17 (b) Support tri-share regional recruitment and statewide
18 services.

19 (c) Create and enforce benchmarks for regional recruitment and
20 statewide services for any program partner receiving appropriated
21 funds.

22 (7) The department of lifelong education, advancement, and
23 potential shall award funds to ensure regional employer recruitment
24 efforts and statewide program administration. The department of
25 lifelong education, advancement, and potential may provide
26 quarterly advances for timely provider payments. On conclusion of
27 the program or termination of any grant agreement, any unspent
28 award funds held by any program partner must be spent down toward
29 this state's share of child care payments or returned to this state



1 at the discretion of the department of lifelong education,
2 advancement, and potential.

3 (8) The department of lifelong education, advancement, and
4 potential shall innovate program and administration options to
5 attract employer program participation in this state.

6 (9) A child care facilitator receiving funds under this
7 section must be a nonprofit, a limited liability company, a C-
8 corporation, an S-corporation, an intermediate school district, or
9 a sole proprietor.